

devised the lease to a trustee for an infant, and the trustee applied for a renewal on behalf of the infant, which was refused, on the ground that there could be no distress of the profits of a market, but the remedy must rest singly in covenant, of

Geddes' App. 80 Pa. St. 442; *Pomeroy v. Benton*, 77 Mo. 64; *Sweet v. Morrison*, 103 N. Y. 235.

*Trustee and cestui que trust.* — A transaction between them is voidable; *Gilman v. Kelly*, 77 Ill. 426; *Kitchen v. St. Louis R. R. Co.* 69 Mo. 224; it must be evidently fair; *Jones v. Lloyd*, 117 Ill. 597; *Baker v. Springfield Co.* 80 Mo. 75; trustee may purchase; *Spencer's App.* 80 Pa. St. 317; trustee may make a loan; *Wingate v. Harrison*, 59 Ind. 520; *Bent v. Priest*, 86 Mo. 475; cannot speculate with the estate; *Landis v. Saxton*, 89 Mo. 375; see *Parker v. Nickerson*, 112 Mass. 195; *McNeil v. Gates*, 41 Ark. 264; disability may be absolute; *Creveling v. Fritts*, 34 N. J. Eq. 134; *Freeman v. Harwood*, 49 Me. 195; not necessary to set transactions aside, because of the fiduciary relation; *Brown v. Cowell*, 116 Mass. 461; *Perry on Trusts*, § 195; *cestui que trust* may treat sale as a nullity; *Brothers v. Brothers*, 7 Ired. Eq. 150; burden of proving fairness is on the trustee; *Miles v. Wheeler*, 43 Ill. 124; objection to sale must be made within a reasonable time, if at all; *Mason v. Martin*, 4 Md. 124; *Marsh v. Whitmore*, 21 Wall. 178; the same principles apply in case of trustee purchasing through another; *Gaston v. Dashiell*, 55 Tex. 508; but if trustee did not intend to purchase, when sold to another, his purchase will stand; *Stephen v. Beall*, 22 Wall. 329; see *Lehmann v. Rothbarth*, 111 Ill. 185; directors and officers of a corporation cannot receive benefits not shared by others; *Union Pacific R. R. Co. v. Credit Mobilier*, 135 Mass. 367; *Lyman v. Bonney*, 101 Mass. 502; *Twin Lick Co. v. Marbury*, 91 U. S. 587; *Thomas v. Brownville R. R. Co.* 109 U. S. 522; trustee cannot purchase at a judicial sale; *Roberts v. Moseley*, 64 Mo. 507; *Baker v. Springfield R. R. Co.* 80 Mo. 75; if a trustee get a new lease that is merely a graft on the old one and enures to the trust estate; *Gower v. Andrew*, 59 Cal. 119; *Davis v. Hamlin*, 108 Ill. 39.

*Guardian and ward.* — Transactions between them are voidable; *Taylor v. Brown*, 55 Mich. 482; *Meek v. Perry*, 36 Miss. 190; *Hunter v. Lawrence*, 11 Gratt. 111; guardian must account for all profits; *Kepler v. Davis*, 80 Pa. St. 153; even after the relation is terminated, any dealings between them will be carefully scrutinized; *Harris v. Carstarphen*, 69 N. C. 416; *Smith v. Davis*, 49 Md. 470; *Manson v. Felton*, 13 Pick. 206.

*Executors and administrators.* — Same principles apply as in cases already considered; *Humphreys v. Burleson*, 72 Ala. 1; *Newhall v. Jones*, 117 Mass. 252; cannot buy through another; *Morgan v. Wattles*, 69 Ind. 260; *McGaughey v. Brown*, 46 Ark. 25; transactions are voidable; *Ives v. Ashley*, 97 Mass. 198; *White v. Moss*, 67 Ga. 89; *Jones v. Graham*, 36 Ark. 383; may purchase of another; *Boehlert v. McBride*, 48 Mo. 505.

So mortgagee exercising power of sale is bound to act in good faith; *Thompson v. Heywood*, 129 Mass. 401; *Burr v. Borden*, 61 Ill. 389; *Hood v. Adams*, 124 Mass. 481.

*Husband and wife.* — A voluntary conveyance between them may be set aside; *Boyd v. de la Montagnie*, 73 N. Y. 498; *Walker v. Coleman*, 81 Ill. 390; *Haydock v. Haydock*, 34 N. J. Eq. 570; *Stone v. Wood*, 85 Ill. 603.

*Parent and child.* — Transaction between them must be fair; *Miskey's App.* 107 Pa. St. 611; *Wood v. Rabe*, 96 N. Y. 414; so in case of one standing in